

Ross on Crime

C

Credit

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Credit

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[3.9600] Definition

In a forensic setting, credit refers to the veracity and trustworthiness of the evidence of a witness. The credit of a witness might be affected by collateral matters, that is to say matters which are separate from the issues in the case. It is to those matters that this section is addressed. Sometimes the phrase “mere credit” is used.

[3.9605] Difference between credit and issue

In *Palmer v The Queen* (1998) 193 CLR 1; 96 A Crim R 213; 151 ALR 16, McHugh J reviewed the difference between credit and issue. What McHugh J said (at 21–23; 31–33; 229–230) was summed up in *R v V* (1998) 100 A Crim R 488 (NSW CCA) (at 494):

McHugh J undertook a review of the common law principles underlying the restrictions on leading evidence as to credit and the distinction between credit and facts-in-issue. He made these points ...

- (a) If the evidence on the issue in question is regarded as going solely to the credit of the complainant, the finality rule applies; answers given in cross-examination regarding collateral facts such as credit must be regarded as final. (There are exceptions to this rule.) The “bolster rule” would also apply; evidence is not admissible if it merely bolsters the credibility of a party or a witness.
- (b) The line between evidence relevant to credit and evidence relevant to a fact in issue is often indistinct and unhelpful. The credit of a witness may be of such crucial importance that it is decisive of the facts in issue, particularly where the witness is a participant in the very facts in issue or is the only eyewitness to them.
- (c) The rationale between the credit and the facts in issue distinction is “based primarily upon the need to confine the trial process and secondly upon notions of fairness to the witness”.
- (d) Accordingly, the evidentiary rules based on the distinction between issues of credit and facts in issue should not be regarded as hard and fast rules of law but “as a well established guide to the exercise of judicial regulation of the litigation process”. If evidence going to credibility has real probative value with respect to the facts in issue it ought not to be excluded unless the time, convenience and cost of litigating the issue that it raises is disproportionate to the light that it throws on the facts in issue.

McHugh J said (at 24; 33; 231-232):

The rigid distinction between credit and facts in issue and the rules predicated on that distinction should therefore be minimised by the adoption of a more flexible view as to when matters going to the credibility of a witness should be admitted as evidence probative of the facts-in-issue. Evidence concerning the credibility of a witness is as relevant to proof of an issue as are the facts deposed to by that witness. There is no distinction, so far as relevance is concerned, between the credibility of the witness and the facts to which he or she deposes. The credibility of evidence is locked to the credibility of its deponent. The truth of that proposition is in reality recognised by the rule that a witness can be cross-examined as to matters of credit. Because that is so, it is irrational to draw a rigid distinction between matters of credit and matters going to the facts in issue.

McHugh J's comments were neither adopted nor rejected by any of the other justices and he was in the minority on one of the points. I have found the discussion very helpful and persuasive.

[3.9610] Examination-in-chief

Evidence showing the credit, credibility or good character of a witness cannot be led in evidence in chief. It is sometimes called the “bolster rule”.

In *Bamfield v Massey* (1808) 1 Camp 460; 170 ER 1021, a civil action for seduction of the plaintiff's daughter, Lord Ellenborough said (at 461):

Witnesses cannot be examined by the plaintiff to the character of the daughter, except in answer to evidence on the other side.

Lawton LJ giving judgment of the Court of Appeal in *R v Turner* [1975] QB 834; [1975] 2 WLR 56; [1975] 1 All ER 70; 60 Cr App R 80 said (at 842; 75; 84):

[I]n general evidence can be called to impugn the credibility of witnesses but not led in chief to bolster it up.

In *Palmer v The Queen* (1998) 193 CLR 1; 96 A Crim R 213; 151 ALR 16 McHugh J said (at 21; 31; 229 [49]):

(T)he “bolster rule” ... stipulates that evidence is not admissible if it merely bolsters the credibility of a party or witness, whether the evidence is sought to be led in evidence-in-

chief or cross-examination of another witness or in re-examination of the party or witness attacked.

See also

R v B  land [1987] 1 SCR 398; (1987) 43 DLR (4th) 641; 36 CCC (3d) 481 at 404–408, 646–649, 486–489 (SCC).

[3.9615] Lie detector

The fact of submission to a lie detector would be an attempt to bolster the credit of the witness and is not admissible.

See also

Lie detector at [12.1300].

[3.9620] Effect of weakened credibility

In *Re Minister for Immigration & Multicultural Affairs; Ex parte Applicant S20/2002* (2003) 77 ALJR 1165; 198 ALR 59 McHugh and Gummow JJ said (at 1175; 70 [49]):

In a dispute adjudicated by adversarial procedures, it is not unknown for a party's credibility to have been so weakened in cross-examination that the tribunal of fact may well treat what is proffered as corroborative evidence as of no weight because the well has been poisoned beyond redemption.

[3.9625] Virginit   in sexual cases

In sexual cases there is debate about whether evidence of virginity of the complainant is a matter of mere credit or is an issue. It would clearly be an issue if the defence were alleging that the prosecutrix is a virgin at the time of trial, or at least when the complaint of sexual intercourse was made: *M v The Queen* (1994) 181 CLR 487; 76 A Crim R 213.

When the complainant says in evidence in chief that she was a virgin when the charged events occurred, she may be cross-examined about her prior sexual activities: *R v Allingham* [1991] 1 Qd R 429; (1989) 42 A Crim R 175 (CCA).

Courts have adopted the words of *Cross on Evidence*:

Evidence is often effectively limited to that of the parties, and much is likely to depend upon the balance of credibility between them. This has important effects for the law of evidence

since it is capable of reducing the difference between questions going to credit and questions going to the issue to vanishing point. If the only issue is consent and the only witness is the complainant, the conclusion that the complainant is not worthy of credit must be decisive of the issue.

Approved:

R v Funderburk [1990] 1 WLR 587; [1990] 2 All ER 482; (1990) 90 Cr App R 466;

R v C [1995] 2 NZLR 330 at 335–336 (CA);

R v Lawrence [2002] 2 Qd R 400; (2001) 124 A Crim R 83 at [13] (CA).

See also

Relevance at [18.2400]; and **Sexual offence** at [19.3000].

[3.9630] Cross-examination on credit

In *R v Brown* [1998] AC 367; [1998] 1 Cr App R 66; [1997] 3 All ER 769 (HL) Lord Hope said (at 380; 76; 778):

No witness enters the witness box with a certificate which guarantees his credibility. Every witness can expect to be cross-examined upon the veracity or reliability of his evidence.

Bar Rules

Austalian Bar Association model rules provide:

38. A barrister must not make a suggestion in cross-examination on credit unless the barrister believes on reasonable grounds that acceptance of the suggestion would diminish the witness's credibility.

A judge should not constrain cross-examination on credit

In *R v Aldridge* (1990) 20 NSWLR 737; 51 A Crim R 281 (CCA) Hunt J said (at 742; 286):

[I]n a case where the credit of a witness is very much in issue, it is in my view an unwise approach ... to exclude matters which are relevant to credit unless they are clearly of no material weight whatsoever upon that issue. That decision to reject the evidence should always be taken with great caution and as an exception to the rule rather than as the rule itself.

In *Wakeley v The Queen* (1990) 64 ALJR 321; 93 ALR 79 (HC) the court said in a joint judgment (at 325; 86):

The limits of cross-examination are not susceptible of precise definition, for a connection between a fact elicited by cross-examination and a fact in issue may appear, if at all, only after other pieces of evidence are forthcoming. Nor is there any general test of relevance which a trial judge is able to apply in deciding, at the start of a cross-examination, whether a particular question should be allowed. Some of the most effective cross-examinations have begun by securing a witness' assent to a proposition of seeming irrelevance. Although it is important in the interests of the administration of justice that cross-examination be contained within reasonable limits, a judge should allow counsel some leeway in cross-examination in order that counsel may perform the duty, where counsel's instructions warrant it, of testing the evidence given by an opposing witness.

Both cases were followed in *R v Maslen* (1995) 79 A Crim R 199 at 204 (NSW CCA).

In *R v Ditroia & Tucci* [1981] VR 247 (CCA) the court said in a joint judgment (at 252):

It is a different matter if the questions are put only as to bad character. Of course the cross-examiner would then be bound by the answer given – save for the provisions of s 33 of the *Evidence Act 1958*. Otherwise the ambit of the court's power to interfere with cross-examination as to credit is to be found in s 37 of that Act.

[3.9635] Prior convictions

Prior convictions may be relevant to credit.

In *R v Hanson* [2005] 1 WLR 3169; [2005] 2 Cr App R 299 (CA) the court said in a joint judgment (at 3174; 304–305 [13]):

Previous convictions, whether for offences of dishonesty or otherwise, are therefore only likely to be capable of showing a propensity to be untruthful where ... truthfulness is an issue and ... either there was a plea of not guilty and the defendant gave an account, on arrest, in interview, or in evidence, which the jury must have disbelieved, or the way in which the offence was committed shows a propensity for untruthfulness, for example, by the making of false representations.

In *R v S* [2007] 1 WLR 63 (CA) the court (at 67–68 [12]) followed *R v Hanson* [2005] 1 WLR 3169; [2005] 2 Cr App R 299. In *R v S* [2007] 1 WLR 63 a man had been masturbated by a

prostitute. She then screamed, demanded more money and tried to take a chain of his. When he refused she said she would charge him with rape. In fact he was charged with indecent assault. She had earlier pleaded guilty to dishonesty offences. The trial judge refused to allow the defence to cross-examine her on those convictions. Appeal allowed.

[3.9640] Bias

In *Smith v The Queen* (1993) 9 WAR 99 (CCA) it was held that evidence should have been admitted to show that the complainant gave her evidence from a corrupt or other motive. Such evidence would contradict her answers in cross-examination. Appeal allowed.

See also

R v Umanski [1961] VR 242 at 244 (CCA);

R v De Angelis (1979) 20 SASR 288 at 295 (CCA);

R v LSS (2000) 1 Qd R 546; (1998) 103 A Crim R 101 (at 553–554; 108–109 [28]) (CA);

Palmer v The Queen (1998) 193 CLR 1; 96 A Crim R 213; 151 ALR 16 per McHugh J (at 21; 31; 229 [48]);

Phillips J, “Impeachment for Bias of Evidence by Witnesses as to Collateral Matters” (1988) 62 ALJ 288–291.

Bias at [2.1800].

[3.9645] Cross-examination on gross improprieties

It is permissible to suggest to a police witness that he has committed gross improprieties even if the accused does not lead supportive evidence: *R v Mahoney-Smith* [1967] 2 NSW 154; (1967) 87 WN (Pt 1) NSW 249 at 161, 255 (O'Brien J in chambers).

To be cross-examined on credit requires some admissible evidence against the party.

In *R v Brotherton* (1992) 29 NSWLR 95; 65 A Crim R 301 (CCA) Hunt CJ at CL said (at 104; 310):

A witness may, of course, be cross-examined in relation to other conduct by him which was improper, for the purpose of attacking his credit as a witness. But such an attack upon his credit is admissible only when he has given evidence of some fact which is admissible against the party cross-examining him (whether given in chief or in cross-examination): *Hobbs v Tinling* [1929] 2 KB 1 at 18–20, 39; *Judd v Sun Newspapers Ltd* (1930) 30 SR

(NSW) 294 at 301, 315. If no evidence be given by a witness, there is nothing to which an attack upon his credit is relevant.

[3.9650] General rule – answers to mere credit questions are final

One's own witness

In *R v Welden* (1977) 16 SASR 421 (CCA) Bray CJ said (at 427):

A party who calls a witness cannot, with irrelevant exceptions, call other evidence to show that the witness is a person unworthy of credit, but he can call other evidence to show that he has made a mistake.

Approved:

R v Andrews (1992) 60 A Crim R 137 at 149 (SA CCA); *Goncalves v The Queen* (1997) 99 A Crim R 193 at 216 (WA CCA).

Followed:

Graham v Police (2001) 122 A Crim R 152 at 164 [41] (SA, Gray J).

An opposition witness: the finality rule

In *Palmer v The Queen* (1998) 193 CLR 1; 96 A Crim R 213; 151 ALR 16 McHugh J said (at 21; 31; 229 [48]):

[The finality] rule stipulates that answers given by a party or witness in cross-examination regarding collateral facts such as credit must be regarded as final. If that rule applied, neither the appellant nor any other witness could give evidence of facts that would rebut the complainant's denial that she had fabricated the complaint. However, there are exceptions to the finality rule. Probably the best known is that, if a witness denies in cross-examination that he or she has been convicted of an offence, the opposite party may tender evidence of the conviction. Similarly, where the credibility of the witness is affected by a mental or medical condition, evidence as to that condition may be tendered. Another exception is where the veracity of a witness has been attacked in cross-examination. In that case, evidence may be led concerning the witness's general reputation for veracity. Conversely, where a suggestion of bias on the part of a party or witness is denied by that party or witness in cross-examination, evidence may be led to establish the bias.

In *Goldsmith v Sandilands* (2002) 76 ALJR 1024; 190 ALR 370 McHugh J repeated what he had said in *Palmer* (1998) 193 CLR 1; 96 A Crim R 213; 151 ALR 16.

To the exceptions to the finality rule he added evidence that a witness has been corrupted (at 1030; 378 [34]) or had made a prior consistent statement (at 1030; 379 [36]).

In *R v Harmer* (1985) 28 A Crim R 35 (Vic CCA) the court said in a joint judgment (at 41):

While it is true that the applicant was not entitled to call evidence going merely to the credit of a Crown witness, it is equally well established that an accused, as the applicant was, is entitled to call in support of his defence in disproof of the Crown case any evidence which is relevant to an issue and this might include evidence touching the disposition, character or violent propensity of some other person: *Gibb* [1983] 2 VR 155; (1982) 7 A Crim R 385; *Lowery and King (No 3)* [1972] VR 939 at 944-945; *Lowery* [1974] AC 85 at 102; *Knight v Jones; ex parte Jones* [1981] Qd R 98; *Letsoko* [1964] 4 SAR 768 and *Gosschalk v Rossouw* [1966] 2 SAR 476.

Approved:

R v Polley (1997) 68 SASR 227; 93 A Crim R 325 (CCA).

In practice the finality rule seems to be more relaxed than in earlier times. The relaxation of the rule is especially evident in word against word sexual cases.

R v Funderburk [1990] 1 WLR 587; [1990] 2 All ER 482; (1990) 90 Cr App R 466.

In *R v Nagrecha* [1997] 2 Cr App R 401 (CA) the complainant denied making a sex complaint against her employer, similar to the one she had made against the accused. The appeal was allowed. The employer should have been allowed to give evidence. The court said (at 406):

If the only issue is consent and the only witness is the complainant, the conclusion that the complainant is not worthy of credit must be decisive of the issue.

The employer should have given evidence because it (at 410):

[W]ent not merely to credit, but to the heart of the case, in that it bore on the crucial issue as to whether or not there had been any assault. As to that matter only, the complainant and the appellant were able to give evidence.

R v Lawrence [2002] 2 Qd R 400; (2001) 124 A Crim R 83 (CA) was a gaol sex case. It was an allegation that the accused prisoner raped the complainant prisoner anally. The complainant was cross-examined extensively about his credit. He denied threatening another prisoner with a false sex complaint. The defence was stopped from calling that other prisoner. The Court of Appeal examined the finality rule extensively. It held that the defence should have been allowed to call that evidence. Appeal allowed.

[3.9655] Flexible standard rather than fixed rule

In *Goldsmith v Sandilands* (2002) 76 ALJR 1024; 190 ALR 370 McHugh J said (at 1031; 379 [39]):

Despite the longevity of the finality rule, it has increasingly come to be regarded more as a flexible standard than a fixed rule of law: *Palmer v R* (1998) 193 CLR 1 at 22 [52]. Starke J recognised this in *Piddington v Bennett and Wood Pty Ltd* [1965] AC 595 at 607 when he said that the finality rule was “a rule of convenience, and not of principle”. Similarly, in *Natta v Canham* (1991) 32 FCR 282 at 298.

In *Nicholls v The Queen* (2005) 219 CLR 196; 213 ALR 1 McHugh J said (at 223; 16 [56]):

The collateral evidence rule should therefore be seen as a case management rule that is not confined by categories. Because that is so, evidence disproving a witness's denials concerning matters of credibility should be regarded as generally admissible if the witness's credit is inextricably involved with a fact in issue. Consistently with the case management rationale of the finality rule, however, a judge may still reject rebutting evidence where, although inextricably connected with a fact in issue, the time, convenience or expense of admitting the evidence would be unduly disproportionate to its probative force. In such cases, the interests of justice do not require relaxation of the general rule that answers given to collateral matters such as credit are final.

[3.9660] Fact in issue

The finality rule does not apply where the evidence in question is on a fact in issue.

In *Palmer v The Queen* (1998) 193 CLR 1; 96 A Crim R 213; 151 ALR 16 McHugh J said (at 24; 33; 231–232 [55]–[56]):

If evidence going to credibility has real probative value with respect to the facts-in-issue, however, it ought not to be excluded unless the time, convenience and cost of litigating the issue that it raises is disproportionate to the light that it throws on the facts-in-issue.

The rigid distinction between credit and facts-in-issue and the rules predicated on that distinction should therefore be minimised by the adoption of a more flexible view as to when matters going to the credibility of a witness should be admitted as evidence probative of the facts-in-issue. Evidence concerning the credibility of a witness is as relevant to proof of an issue as are the facts deposed to by that witness. There is no distinction, so far as relevance is concerned, between the credibility of the witness and the facts to which he or she deposes. The credibility of evidence is locked to the credibility of its deponent. The truth of that proposition is in reality recognised by the rule that a witness can be cross-examined as to matters of credit. Because that is so, it is irrational to draw a rigid distinction between matters of credit and matters going to the facts-in-issue.

See also

Relevance at [\[18.2400\]](#).

[3.9665] Exceptions to the rule on credit questions

1. If there has been a prior inconsistent statement

See also

Prior inconsistent statement at [\[16.4700\]](#); and **Cross-examination on documents** at [\[3.10600\]](#).

2. The witness has prior convictions

Legislation

Uniform Evidence Acts s 106;

Qld: *Evidence Act 1977* s 16;

WA: *Evidence Act 1906* s 23 (any indictable offence);

SA: *Evidence Act 1929* s 26;

NZ: *Evidence Act 2006*.

In [Bugg v Day \(1949\) 79 CLR 442](#) Dixon J said (at 467):

Scanty as is the material obtained to form a conclusion I think the better view is that at common law a conviction of a witness for an offence could not be used for the purpose of discrediting him if the offence was not of such a nature as to tend to weaken confidence in the credit of the witness, that is to say in his character or trustworthiness as a witness of truth. Traffic offences cannot often fulfil this condition.

Followed:

Palmer v The Queen (1998) 193 CLR 1; 96 A Crim R 213; 151 ALR 16 per McHugh J at 21 [48];

Goldsmith v Sandilands (2002) 76 ALJR 1024; 190 ALR 370 per McHugh J at 1030; 378 [35].

See also

R v Aldridge (1990) 20 NSWLR 737; 51 A Crim R 281 (CCA);

R v Brooks (1999) 103 A Crim R 234 at 251 [98] (Vic CA);

R v Millar [2000] 1 Qd R 437; (1998) 103 A Crim R 526 (CA).

3. Bias

R v Umanski [1961] VR 242 at 244 (CCA).

See also

Bias at [2.1800].

4. Cheating or obstructing the judicial process

The purpose of ordering a proposed witness from court is to ensure independence of evidence. Such a witness who contrives to find out what has been said in court lacks independence, and that may be proved. (The old expression for passing the information to such a witness was “running the rabbit”.)

In *R v Mendy* (1976) 64 Cr App R 4 Shaw LJ said of the accused's husband (at 6):

[I]t seems strange, if it be the case, that the Court and jury have to be kept in ignorance of behaviour by a witness such as that in the present case. The suggestion which lay behind the evidence in question was that Mr Mendy was prepared to lend himself to a scheme designed to defeat the purpose of keeping prospective witnesses out of Court; that he allowed the messenger to give him details of what Detective Constable Price had been saying in the

witness-box about the assault which the appellant was alleged to have committed. If the evidence of the Court officer and Constable Thatcher was to be believed, the jury could be in little doubt that the witness's object in receiving such instruction must have been to enable him the more convincingly to describe how he and not the appellant had caused the injuries to the policeman. The witness was prepared to cheat in order to deceive the jury and help the defendant. The jury were entitled to be apprised of that fact.

The evidence was properly admitted and the appeal must, therefore, be dismissed.

5. Going to improper lengths to secure a conviction

[R v Mendy \(1976\) 64 Cr App R 4](#) is referred to with approval by Anderson J in [Bond v The Queen \(1992\) 62 A Crim R 383](#) (WA CCA) at 439–440. His Honour was dealing with the prospective evidence of a witness named Healy.

The evidence has a bearing beyond Connell's general credibility. The purport of it is that Connell was positively prepared to go to improper lengths to see Bond convicted. Therefore, if Connell had denied making the statement to Healy, Healy certainly could have been called to give evidence that the statement had been made. This would be so not only in virtue of the doctrine relating to the admissibility of prior inconsistent statements, but upon the broader ground that to keep from the jury evidence of a stated intention by Connell to give false evidence in relation to the fee would be so unfair to Bond as to require the general rule as to finality of answers to questions put on collateral issues to be departed from. The case would be analogous to those cases in which evidence in rebuttal of a denial of prejudice is allowed: [Phillips \(1936\) 26 Cr App R 17](#); [Mendy \(1976\) 64 Cr App R 4](#); [Busby \(1982\) 75 Cr App R 79](#); and see also [Funderburk \[1990\] 1 WLR 587](#); [\[1990\] 2 All ER 482](#).

See also

The judgments of Nicholson J at 388 and Murray J at 431–432 to the same effect.

This exception applies to allow evidence when police have been prepared to go to improper lengths to secure a conviction:

[R v Busby \(1982\) 75 Cr App R 79](#) approved;

[R v Funderburk \[1990\] 1 WLR 587](#); [\[1990\] 2 All ER 482](#); [\(1990\) 90 Cr App R 466 \(CA\)](#).

6. Reputation for untruth

A witness may be called to say that another witness has a reputation for untruth.

In *Palmer v The Queen* (1998) 193 CLR 1; 96 A Crim R 213; 151 ALR 16 McHugh J said (at 21; 31; 229 [48]):

(The finality) rule stipulates that answers given by a party or witness in cross-examination regarding collateral facts such as credit must be regarded as final ... However, there are exceptions to the finality rule ...

Another exception is where the veracity of a witness has been attacked in cross-examination. In that case, evidence may be led concerning the witness's general reputation for veracity: *R v Watson* (1817) 2 Stark 116 [171 ER 591]; *R v Richardson* [1969] 1 QB 299; [1968] 2 All ER 761; (1968) 52 Cr App R 317.

In *R v Richardson* [1969] 1 QB 299; [1968] 2 All ER 761; (1968) 52 Cr App R 317, Edmund-Davies LJ said (at 304–305; 764–765; 323–324):

The legal position may be thus summarised:

1. A witness may be asked whether he has knowledge of the impugned witness's general reputation for veracity and whether (from such knowledge) he would believe the impugned witness's sworn testimony.
2. The witness called to impeach the credibility of another witness may also express his individual opinion (based upon his personal knowledge) as to whether the latter is to be believed upon his oath and is not confined to giving an opinion based merely on general reputation.
3. But, whether his opinion as to the impugned witness's credibility be based simply upon the latter's general reputation for veracity or upon personal knowledge, the witness cannot be permitted to indicate during his examination-in-chief the particular facts, circumstances or incidents which formed the basis of his opinion, although he may be cross-examined as to them.

This method of attacking a witness's veracity, though ancient, is used with exceeding rarity.

Approved:

Bell v The Queen (1985) 7 FCR 555; 63 ALR 433 at 563, 441;

Bull v The Queen (2000) 201 CLR 443; 110 A Crim R 562; 171 ALR 613 per McHugh, Gummow and Hayne JJ at 455 [46].

Of course, evidence can be sought in cross-examination of the reputation of another witness for untruth:

R v Hanrahan (1964) 87 WN (NSW) 458; [1967] 2 NSWLR 717 (CCA).

Uniform Evidence Acts ss 102 and 106 do not in terms permit such evidence.

For discussion on the ACT position see *Bell v The Queen* (1985) 7 FCR 555; 63 ALR 433 (FCA).

7. False sexual allegations on other occasions

Evidence may with leave be led in a contested sexual case that the witness made false sexual allegations on other occasions. The evidence is not limited to other complaints about the accused.

R v FTG (2007) 15 VR 685; 172 A Crim R 340 (CA) at [63]–[77];

R v Lawrence [2002] 2 Qd R 400; (2001) 124 A Crim R 83 (CA) at [10]–[14];

R v Nagrecha [1997] 2 Cr App R 401 (CCA);

R v Funderburk [1990] 1 WLR 587; [1990] 2 All ER 482; (1990) 90 Cr App R 466 (CA).

See also

R v Pearce [1999] 3 VR 287; (1999) 108 A Crim R 580 at 290 [12] (CA).

No leave can be given in New South Wales: *Criminal Procedure Act 1986* s 293.

[3.9670] Re-examination

Where credit has been the subject of cross-examination, re-examination of the witness can be such to restore credit.

In *Wojcic v Incorporated Nominal Defendant* [1969] VR 323 (FC) the court said (at 326):

A party, however, is entitled, in re-examination, to elicit from his witness facts which explain away or qualify facts which have been elicited from the witness in cross-examination, and which are in themselves prejudicial to the party's case or the witness's credit, or from which prejudicial inferences could be drawn: see *The Queen's Case* (1820) 2 Brod & Bing 284 at 297; *Prince v Samo* (1838) 7 Ad & El 627 at 632; *R v St George* (1840) 9 C & P 483 at 488; *Wills on Evidence*, 3rd ed p 337; *Wigmore on Evidence*, 3rd ed, s 1896.

The credit of one witness can be restored through another.

In *R v J* (1994) 75 A Crim R 522 (Vic CCA) Brooking J gave the judgment with whom the others agreed. His Honour referred to *Wojcic* [1969] VR 323 and to *R v Phair* [1986] 1 Qd R 136 and went on to say (at 534):

In both these cases the rehabilitating evidence was, or might have been, led from the witness whose credit was impeached; but there is no reason in principle why such evidence may not be elicited from a third person. Nor is there any reason in principle why that evidence from a third person should not be expert evidence. In *C* (1993) 60 SASR 467; 70 A Crim R 378 the Full Court of South Australia accepted that, where the credibility of a witness is attacked, evidence is admissible for the purpose of rehabilitating the credibility of that witness, and that there is no reason why the rehabilitating evidence should not be expert evidence if the subject matter is a fit subject of expert opinion: see per King CJ (at 473; 383).

See also

R v Clune (No 1) [1975] VR 723 at 734 (CCA);

R v Szach (1980) 23 SASR 504; 2 A Crim R 321 (CCA) per King CJ (at 519–520; 328–329);

R v Singleton [1986] 2 Qd R 535; (1986) 24 A Crim R 82 (CCA) per de Jersey J (at 546–547; 93).

See also

Re-examination at [18.2000].

[3.9675] Expert evidence

Opinion evidence of an expert can be used to rehabilitate the credit of a witness. In sexual cases such opinion evidence has been held admissible.

In *R v C* (1993) 60 SASR 467; 70 A Crim R 378 (CCA) King CJ said (at 473; 383):

It is a clear rule, however, that where the credibility of a witness is attacked, evidence is admissible for the purpose of rehabilitating the credibility of that witness. There is no reason why the rehabilitating evidence should not be expert evidence if the subject matter is a fit subject of expert opinion.

Approved:

R v J (1994) 75 A Crim R 522 at 534 (Vic CCA).

[3.9680] Request for evidence on credit of a witness

The following draft letter from the defence has proved useful in discovering matters which go to the credit of a prosecution witness. In summary matters the letter should be directed to the (Chief) Commissioner of Police and to the police informant. In indictable matters it should be directed to the DPP.

We act for ...

Further to *R v K* (1991) 161 LSJS 135 (SACCA) per King CJ at 140 (approved *R v Lewis-Hamilton* [1998] 1 VR 630 at 634-635) and *Grey v The Queen* (2001) 75 ALJR 1708 would you be kind enough to provide information which reflects materially upon the credit of prosecution witnesses.

We expect that this will include, but will not necessarily be restricted to, any criminal history of any witness proposed to be called by the prosecution.

Yours sincerely,

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